EMON OVERRUNS
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VERSION CUSTOMER 3.72 · NOVEMBER 02 2026

CUSTOMER AGREEMENT

SUMMARY

IMPORTANT FOR EVERY CUSTOMER. ALL INFORMATION YOU GIVE MUST BE **TRUE**. EVERY RECORD OF YOUR ACCOUNT — ORDERS, DELIVERIES, INVOICES, PAYMENTS, CHARGES, ADJUSTMENTS AND STATEMENTS — IS **VALID AS AN ORIGINAL DOCUMENT**. IF YOU SEE ANY MISTAKE, **CONTACT THE OFFICE OF EMON OVERRUNS IMMEDIATELY**. PAY EVERY INVOICE ON TIME: **FAILURE TO PAY ALLOWS LEGAL ACTION**. YOUR SIGNATURES AND EVERYTHING DONE WITH YOUR PUBLIC ID AND PRIVATE PIN BIND YOU. YOUR PERSONAL DATA IS PROTECTED UNDER THE DATA PRIVACY ACT OF 2012.

1. ABOUT THE PORTAL AND THIS AGREEMENT

THE EMON OVERRUNS E-PORTAL (THE "PORTAL"), ITS WEBSITE, WINDOWS AND ANDROID APPS ARE OWNED AND RUN BY **EMON OVERRUNS**, PASAY CITY, METRO MANILA, PHILIPPINES, MANAGED BY **EMON HASAN**, MANAGING DIRECTOR, WHO IS THE PERSONAL INFORMATION CONTROLLER AND DATA PROTECTION OFFICER (EMONOVERRUNS@GMAIL.COM).

THIS **CUSTOMER AGREEMENT** BINDS EVERY CUSTOMER OF EMON OVERRUNS, ITS OWNERS AND AUTHORIZED PERSONS, AND ANYONE WHO SIGNS IN WITH THE CUSTOMER'S PUBLIC ID AND PRIVATE PIN ("YOU"). BY TICKING **"I HAVE READ ALL AND I AGREE"** AND PRESSING **SUBMIT** YOU ACCEPT ALL OF IT. IF YOU DO NOT AGREE, SIGN OUT AND DO NOT USE THE PORTAL.

2. THE INFORMATION YOU GIVE IS TRUE

1. YOU DECLARE THAT **ALL INFORMATION AND DOCUMENTS YOU GIVE** TO EMON OVERRUNS — IN YOUR APPLICATION, IDS, ADDRESS, PHONE, BUSINESS DETAILS, PHOTOS, SIGNATURES, ORDERS, PAYMENTS, RECEIPTS AND EVERY MESSAGE — ARE **TRUE, CORRECT AND COMPLETE**, AND ARE YOURS OR GIVEN WITH THE OWNER'S PERMISSION.
2. YOU WILL TELL THE OFFICE AT ONCE WHEN ANY OF IT CHANGES (ADDRESS, PHONE, BUSINESS, AUTHORIZED PERSONS).
3. GIVING FALSE, MISLEADING OR INCOMPLETE INFORMATION IS A GROUND TO REFUSE, SUSPEND OR CLOSE YOUR ACCOUNT AND TO STOP DELIVERIES, AND MAY BE PUNISHABLE BY LAW (FOR EXAMPLE FALSIFICATION OR ESTAFA UNDER THE REVISED PENAL CODE). YOU ARE RESPONSIBLE FOR ANY LOSS IT CAUSES.

3. YOUR ACCOUNT RECORDS, CHARGES AND PAYMENT

1. EVERY RECORD THAT EMON OVERRUNS OR EMON HASAN MAKES, ADDS OR APPROVES IN THE PORTAL — CUSTOMER ACCOUNTS, ORDERS, DELIVERY RECORDS, INVOICES, PAYMENTS RECEIVED, RECEIPTS, CREDIT MEMOS AND RETURNS, ADDITIONAL CHARGES, SETTLEMENT ADJUSTMENTS, STATEMENTS OF ACCOUNT, BALANCE CERTIFICATES, GATE PASSES, E-BILLS, VOUCHERS, PAYROLL AND EVERY OTHER RECORD OR SYSTEM DATA — IS AN **OFFICIAL BUSINESS RECORD** OF EMON OVERRUNS, MADE IN THE REGULAR COURSE OF BUSINESS, AND IS **VALID AND BINDING AS AN ORIGINAL DOCUMENT** (REPUBLIC ACT NO. 8792 AND THE RULES ON ELECTRONIC EVIDENCE), ALSO WHEN IT IS PRINTED, DOWNLOADED, SENT BY EMAIL OR CHECKED BY ITS QR CODE OR BARCODE.
2. YOU AGREE THAT THE AMOUNTS, CHARGES, QUANTITIES, DATES AND BALANCES IN THESE RECORDS ARE **TRUE AND CORRECT**, AND THAT THE BALANCE SHOWN ON YOUR ACCOUNT AND STATEMENT OF ACCOUNT IS THE AMOUNT YOU OWE.
3. **IF THERE IS ANY MISTAKE OR ISSUE** IN A RECORD, YOU MUST **CONTACT THE OFFICE OF EMON OVERRUNS IMMEDIATELY** (PASAY CITY, METRO MANILA · EMONOVERRUNS@GMAIL.COM) SO IT CAN BE CHECKED AND FIXED. A RECORD NOT QUESTIONED IN WRITING WITHIN SEVEN (7) DAYS FROM THE DAY YOU RECEIVE OR CAN SEE IT IS TAKEN AS CORRECT AND ACCEPTED BY YOU.
4. EVERY INVOICE AND CHARGE MUST BE PAID IN FULL ON OR BEFORE ITS DUE DATE. **IF YOU FAIL TO PAY**, EMON OVERRUNS MAY, WITHOUT FURTHER NOTICE: HOLD OR STOP DELIVERIES (GATE PASS FREEZE ACCOUNT), SUSPEND OR CLOSE THE ACCOUNT, ADD THE CHARGES AND ADJUSTMENTS ALLOWED BY THE AGREEMENT, SEND COLLECTION LETTERS, REFER THE ACCOUNT TO COLLECTION, AND **TAKE LEGAL ACTION AGAINST YOU** — INCLUDING A CIVIL CASE OR SMALL CLAIMS CASE FOR THE AMOUNT DUE, WITH INTEREST, DAMAGES, COSTS OF COLLECTION AND ATTORNEY'S FEES — AND FILE A CRIMINAL COMPLAINT WHERE THE LAW ALLOWS (FOR EXAMPLE UNDER BATAS PAMBANSA BLG. 22 FOR A BOUNCED CHECK, OR FOR ESTAFA UNDER THE REVISED PENAL CODE).
5. THESE RECORDS MAY BE USED AS EVIDENCE BEFORE ANY BARANGAY, OFFICE, AGENCY OR COURT IN THE PHILIPPINES OR IN ANOTHER COUNTRY.

4. YOUR PUBLIC ID AND PRIVATE PIN

1. YOUR **PUBLIC ID** (QR CODE) AND YOUR **PRIVATE PIN** OPEN YOUR ACCOUNT. KEEP YOUR PRIVATE PIN SECRET; NEVER GIVE IT TO ANOTHER PERSON.
2. EVERY SIGN IN, AGREEMENT AND CONFIRMATION MADE WITH YOUR PUBLIC ID AND PRIVATE PIN IS **YOUR ACT**.
3. IF YOU LOSE YOUR PAPERS OR SOMEONE KNOWS YOUR PRIVATE PIN, TELL THE OFFICE AT ONCE TO GET A NEW ONE. 5 WRONG PRIVATE PINS LOCK THE SIGN IN FOR 15 MINUTES.

5. DATA PRIVACY NOTICE AND CONSENT (REPUBLIC ACT NO. 10173)

WHAT WE COLLECT: NAMES, ADDRESSES, PHONE NUMBERS, EMAIL, BIRTH DATE, PHOTOS, IDS AND DOCUMENTS, SPECIMEN AND APPROVED SIGNATURES, EMPLOYMENT AND PAYROLL DATA, CUSTOMER ACCOUNTS AND MONEY RECORDS (ORDERS, INVOICES, PAYMENTS, BALANCES, STATEMENTS), DELIVERY RECORDS AND PHOTOS, LOCATION CHECKS, AND FOR EVERY LOGIN: DEVICE, BROWSER, IP ADDRESS AND THE TIME OF EACH ACTION.

WHY: TO RUN THE BUSINESS (CUSTOMER ACCOUNTS, ORDERS, DELIVERY, BILLING AND COLLECTION, PAYROLL AND HUMAN RESOURCES), TO CHECK AND VERIFY DOCUMENTS, TO KEEP THE PORTAL SECURE, TO PREVENT FRAUD, AND TO FOLLOW THE LAW (FOR EXAMPLE TAX AND LABOR RULES).

LEGAL BASIS: YOUR CONSENT, THE CONTRACT WITH YOU, LEGAL OBLIGATIONS AND THE LEGITIMATE INTERESTS OF EMON OVERRUNS (SECTIONS 12 AND 13 OF THE DATA PRIVACY ACT OF 2012).

WHERE AND HOW LONG: ON SECURE CLOUD SERVERS IN SINGAPORE WITH ENCRYPTED CONNECTIONS AND ACCESS ONLY BY MENU. EMON OVERRUNS STAYS RESPONSIBLE FOR THIS TRANSFER (SECTION 21). RECORDS ARE KEPT WHILE NEEDED FOR THESE PURPOSES AND AS LONG AS THE LAW REQUIRES (FOR EXAMPLE BOOKS OF ACCOUNTS FOR THE BUREAU OF INTERNAL REVENUE), THEN DELETED OR MADE ANONYMOUS.

YOUR RIGHTS: TO BE INFORMED, TO ACCESS, TO OBJECT, TO CORRECT, TO ERASURE OR BLOCKING, TO DATA PORTABILITY, TO DAMAGES, AND TO COMPLAIN TO THE NATIONAL PRIVACY COMMISSION (PRIVACY.GOV.PH). WRITE TO EMON HASAN AT EMONOVERRUNS@GMAIL.COM. SOME RECORDS CANNOT BE ERASED WHILE THE LAW REQUIRES THEM TO BE KEPT.

OTHER COUNTRIES: WHERE A USER, CUSTOMER OR RECORD IS UNDER THE LAWS OF ANOTHER COUNTRY, THE STRICTER RULE APPLIES, INCLUDING WHERE APPLICABLE THE EU GENERAL DATA PROTECTION REGULATION (EU) 2016/679, THE UK GDPR, THE SINGAPORE PERSONAL DATA PROTECTION ACT 2012, THE DATA PROTECTION AND CYBER SECURITY LAWS OF BANGLADESH, AND THE PRIVACY LAWS OF THE UNITED STATES AND OF ANY OTHER COUNTRY CONCERNED.

6. ELECTRONIC SIGNATURE CONSENT

1. UNDER REPUBLIC ACT NO. 8792 (ELECTRONIC COMMERCE ACT OF 2000) AND THE RULES ON ELECTRONIC EVIDENCE (A.M. NO. 01-7-01-SC), AN ELECTRONIC SIGNATURE HAS THE SAME LEGAL EFFECT AS A HANDWRITTEN SIGNATURE.
2. YOUR SIGNATURES ON YOUR **CUSTOMER APPLICATION FORM** AND ON ORDERS, DELIVERY RECEIPTS AND OTHER PAPERS, KEPT IN THE PORTAL, AND EVERY AGREEMENT OR CONFIRMATION YOU MAKE WITH YOUR PUBLIC ID AND PRIVATE PIN, ARE **VALID AND BINDING LIKE YOUR HANDWRITTEN SIGNATURE**, AND YOU WILL NOT DENY THEM.

7. RECORD OF YOUR ACCEPTANCE

WHEN YOU PRESS SUBMIT, THE SERVER KEEPS FOR GOOD: YOUR NAME, EMAIL, ROLE, THE DATE AND TIME, YOUR DEVICE AND BROWSER, YOUR IP ADDRESS, THE VERSION OF THESE TERMS AND THE FINGERPRINT (SHA-256) OF THEIR EXACT TEXT, WITH AN ACCEPTANCE NUMBER (LT-…). NOBODY CAN CHANGE OR DELETE IT. IT IS PROOF OF YOUR CONSENT AND MAY BE USED BY EMON OVERRUNS BEFORE ANY OFFICE OR COURT. YOU CAN SEE AND PRINT YOUR ACCEPTANCE ANY TIME IN THE MENU **LEGAL TERMS**.

8. CHANGES AND GOVERNING LAW

WHEN THESE TERMS CHANGE, A NEW VERSION IS SHOWN AND MUST BE ACCEPTED AGAIN. THESE TERMS ARE GOVERNED BY THE LAWS OF THE REPUBLIC OF THE PHILIPPINES; THE COURTS OF PASAY CITY, METRO MANILA, HAVE JURISDICTION. IF ONE PART IS HELD INVALID, THE REST STAYS IN FORCE.